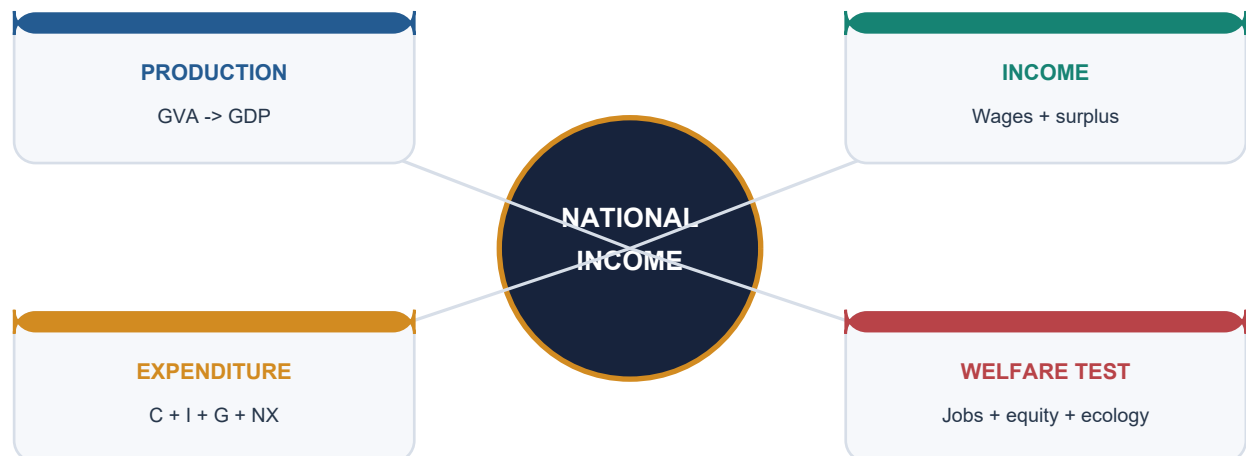


COMPLETE LEARNING SESSION

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 27 - Election Commission - Complete Topic Package

Control date: 19 August 2026, Asia/Kolkata **Tags:** [FACT] directly supported by a named local or official source; [ANALYSIS] reasoned exam use; [CURRENT] date-sensitive control; [LIMIT] boundary, uncertainty or non-ownership. **Core discipline:** claim -> named evidence -> analysis -> qualification. **Scope:** constitutional design, composition, appointment, tenure, removal, administration, rolls, parties and symbols, Model Code of Conduct (MCC), EVM-VVPAT, case law, independence, accountability and reform.

Package method, sources and current legal control

- [FACT] Local source order followed: basic/Election-Commission.md -> advanced/27_Election-Commission.md -> related Polity owners only where a boundary required it -> local OCR-searchable M. Laxmikanth chapter -> audited PYQ routing ledgers and locally held official papers/keys -> official Constitution, India Code, ECI manuals/FAQs, Supreme Court judgments, Legislative Department, PIB and Union Budget material.
- [FACT] Structural and validation reference only: Polity 24, 25 and 26 complete packages. Their subject content has not been imported.
- [FACT] The controlling appointment statute was checked against the official India Code PDF of **The Chief Election Commissioner and other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023**, Act 49 of 2023, including sections 3-11 and 16-18.
- [CURRENT] The 2023 Act commenced on **2 January 2024** under S.O. 35(E), as recorded in the India Code text.
- [CURRENT] The official ECI leadership page, checked for this control date, lists Chief Election Commissioner **Gyanesh Kumar** and Election Commissioners **Dr Sukhbir Singh Sandhu** and **Dr Vivek Joshi**.
- [CURRENT] The Supreme Court's official 22 March 2024 order dismissed applications seeking a stay of section 7 and the appointments, while expressly treating its observations as tentative because the constitutional challenge remained sub judice.
- [LIMIT] Live discovery and the repository's 13 August 2026 legal-control note report that on 30 July 2026 the Court reserved its decision on whether the appointment-law challenges should go to a larger Bench. No later official merits judgment or stay was located in the official judgment search during this export. The safe answer as of 19 August 2026 is therefore: **the Act operates; there is no located stay or merits verdict; do not say it has been upheld or struck down.**
- [LIMIT] No volatile turnout, elector-total or fraud allegation is frozen into this package. Any State-specific electoral-roll revision must be read with the exact ECI order and current court record.

Authoritative source map

Source	Named evidence used	Control
Constitution of India, Part XV	Articles 324-329; Articles 103, 192, 243K, 243ZA	constitutional allocation and boundaries
India Code, Act 49 of 2023	sections 3-11, 16-18	appointment, eligibility, service and business
RPA 1950	rolls, allocation and delimitation framework	election infrastructure
RPA 1951	conduct, candidates, parties, expenses, corrupt practices and petitions	election operation and disputes
ECI Manual on Electoral Rolls, 2023	ordinary residence, qualifying dates, revision, claims and objections	roll administration
ECI MCC Manual / FAQ	evolution, consensus basis, start and end of operation	MCC
ECI Symbols Order, 1968	recognition and symbol allocation/disputes	parties and symbols
Supreme Court judgments	named holdings in the case matrix below	powers, limits and rights
Union Budget, Demand No. 66, 2026-27	ECI establishment expenditure	budget-control nuance

Roadmap

Stage	Units	Outcome
Foundation	Articles 324-329, institutional purpose, ownership	define the ECI without overreach
Design	composition, appointment, tenure, removal, business	solve close constitutional options
Administration	rolls, schedules, officials, observers, expenses	understand the election machine
Regulation	parties, symbols, MCC, repoll and advice	distinguish legal and non-statutory tools
Technology	EVM-VVPAT and judicial safeguards	answer trust questions without amplifying claims
Doctrine	plenary power and case law	state power plus boundary
Evaluation	independence, accountability and reforms	write balanced GS-II answers
Workbook	verified PYQs, 48 rotated MCQs and eight solved Mains	convert doctrine into marks

Scope ownership and cross-links

This package owns	Cross-link only	Reason for boundary
ECI under Article 324	State Election Commissions under Articles 243K/243ZA	local-body elections are constitutionally separate
RPA provisions needed to explain ECI work	full RPA taxonomy, corrupt practices and election petitions	electoral-reforms/RPA owner carries deeper offence and remedy detail
party registration, recognition and symbols	ideology, party system and internal democracy	Political Parties owner
MCC evolution and enforcement	executive conduct and civil-service neutrality generally	Governance/Parliament owners
ECI assistance in delimitation	representation freeze and seat readjustment	Parliament and federal-design owners
ECI's disqualification opinion under Articles 103/192	Tenth Schedule adjudication	Speaker/Chairman under Anti-Defection owner
EVM-VVPAT administration	electronics engineering	Science and Technology owner
post-poll petition boundary	judicial hierarchy and full case procedure	High Court/Supreme Court owners

ECI OWNER

```

|-- national and State-legislature elections
|-- President and Vice-President elections
|-- rolls, schedule, symbols, MCC, observers, poll integrity
|
+--- CROSS-LINKS
    |-- local bodies -> State Election Commission
    |-- delimitation -> statutory Delimitation Commission
    |-- election petition -> High Court / Supreme Court appeal
    |-- party democracy -> Political Parties owner

```

Caption: Ownership follows the constitutional decision-maker, not a broad use of the word "election".

PART I - Complete foundation, core and advanced learning session

01. Why an independent election manager is constitutionally necessary

[FACT] Representative government requires more than periodic voting. It needs an authority able to convert equal citizenship into a credible roll, a lawful candidature process, a neutral polling arrangement, secure counting and an accepted result.

[ANALYSIS] The ECI is therefore best understood as a **constitutional trust institution**: it does not choose the winner; it protects the conditions under which electors choose.

[LIMIT] "Independent" does not mean legally unbounded. The ECI is subject to the Constitution, parliamentary election law, judicial review at the proper stage and reasoned public accountability.

Visual 1 - Democratic trust chain

EQUAL CITIZENSHIP

```

|
accurate roll -> fair candidature -> neutral campaign field
|
secure poll -> verifiable count -> lawful declaration
|

```

ACCEPTED REPRESENTATIVE AUTHORITY

Caption: Trust is cumulative; failure at any link can damage the legitimacy of the result.

02. Article 324: exact field of control

[FACT] Article 324(1) vests in the Election Commission the **superintendence, direction and control** of:

1. preparation of electoral rolls for elections to Parliament and State legislatures;
2. conduct of those elections;
3. elections to the offices of President; and
4. elections to the office of Vice-President.

[LIMIT] Article 324 does **not** place panchayat or municipal elections under the ECI. Articles **243K** and **243ZA** vest those fields in State Election Commissions (SECs).

Visual 2 - Article 324 inclusion-exclusion map

Included in ECI field	Excluded from ECI field
Lok Sabha	Panchayats
Rajya Sabha election administration where applicable	Municipalities
State Legislative Assemblies	cooperative-society elections
State Legislative Councils	internal party organisational elections as such
President	private associations
Vice-President	ordinary by-elections to local bodies

Caption: The quickest Prelims method is to ask whether the elected institution is named in Article 324 or Part IX/IX-A.

03. Part XV master map: Articles 324-329

Visual 3 - Six-article constitutional spine

Article	Core rule	Exam trap
324	ECI's superintendence, direction and control	not a licence to contradict statute
325	one general roll; no exclusion/special roll on religion, race, caste or sex	does not erase lawful residence/age/citizenship conditions
326	adult suffrage for Lok Sabha and State Assemblies	voting is subject to constitutional/statutory disqualifications
327	Parliament may legislate on elections to legislatures	primary source of RPA framework
328	State legislature may legislate for its legislature, subject to Constitution and parliamentary law	subordinate to Parliament's occupied field
329	limits judicial interruption; election challenged by election petition	not total immunity from judicial review

[FACT] The **61st Constitutional Amendment Act, 1988** reduced the voting age under Article 326 from 21 to 18.

[ANALYSIS] Articles 324 and 327 must be read together: constitutional supervision and statutory specification are complementary.

04. ECI versus State Election Commission

Visual 4 - Two constitutional election managers

Dimension	Election Commission of India	State Election Commission
source	Article 324	Articles 243K and 243ZA
field	Parliament, State legislatures, President, Vice-President	Panchayats and municipalities
head	CEC plus other ECs as fixed	State Election Commissioner
appointment	President under the 2023 Act	Governor
removal protection	CEC like SC judge; ECs/Regional Commissioners on CEC recommendation	SEC removed like a High Court judge
law base	Constitution, RPA 1950/1951 and election rules	State local-government election laws

[LIMIT] Simultaneous logistics or use of State officials does not merge the two constitutional authorities.

Prelims trap: "The ECI conducts every public election in India" is false.

05. Institutional evolution

[FACT] The ECI was established on **25 January 1950**. It operated as a single-member body until 15 October 1989; two ECs were added on 16 October 1989, the posts were discontinued in January 1990, and two ECs were again appointed in October 1993. The three-member form has continued since then.

[ANALYSIS] The shift from a single office to a collegial commission distributes authority, creates internal deliberation and reduces person-centred administration.

Visual 5 - Composition timeline

[illegible]

Caption: Multi-membership is constitutionally permitted because Article 324 does not fix the number.

06. Composition under the Constitution and the 2023 Act

[FACT] Article 324(2) provides for the CEC and such number of other ECs, if any, as the President may from time to time fix, subject to a parliamentary law.

[FACT] Section 3 of the 2023 Act states that the Commission consists of the CEC and such number of other ECs as the President may fix from time to time.

[FACT] When other ECs are appointed, Article 324(3) makes the CEC the Chairman.

[LIMIT] Chairmanship does not make the CEC a unilateral superior in adjudicatory or administrative decision-making.

Visual 6 - Position versus power

```
CEC = CHAIR
|
+-- agenda / institutional leadership
+-- constitutional removal protection
|
X-- no unilateral veto over equal EC votes
```

CEC + EC + EC -> unanimity where possible -> otherwise majority

07. Current collegial composition

[CURRENT] On the control date, the ECI's official leadership page lists:

Office	Incumbent
Chief Election Commissioner	Gyanesh Kumar
Election Commissioner	Dr Sukhbir Singh Sandhu
Election Commissioner	Dr Vivek Joshi

[LIMIT] Names are date-sensitive. UPSC usually tests constitutional architecture, not incumbent memory.

08. Regional Commissioners

[FACT] Article 324(4) allows the President, after consulting the ECI, to appoint Regional Commissioners when necessary to assist the Commission.

[FACT] Under Article 324(5), a Regional Commissioner cannot be removed except on the CEC's recommendation.

[LIMIT] Regional Commissioners are not permanent State Election Commissioners and do not replace the Chief Electoral Officer machinery.

Visual 7 - Assistance architecture

President --consults ECI--> may appoint Regional Commissioner
|
v
assists the ECI

NOT: head of a State Election Commission

NOT: independent local-body election authority

09. Appointment before and after Anoop Baranwal

[FACT] Article 324(2) always contemplated appointments by the President, subject to any law Parliament made.

[FACT] In *Anoop Baranwal v. Union of India* (2 March 2023), the Supreme Court filled the legislative vacuum by directing that appointments be made on the advice of a committee comprising the Prime Minister, Leader of Opposition (or largest opposition-party leader) and Chief Justice of India.

[FACT] The judgment expressly said this norm would continue **"till a law is made by the Parliament."**

[LIMIT] The Court did not simply declare every prior executive appointment unconstitutional. Its operative response was a prospective interim institutional arrangement pending legislation.

Visual 8 - Appointment-law sequence

Article 324(2)
|
long absence of parliamentary appointment law
|
Anoop Baranwal (2 Mar 2023)
PM + LoP/largest opposition leader + CJI
| expressly temporary
v
2023 Act, in force 2 Jan 2024
PM + LoP/largest opposition leader + PM-nominated Cabinet Minister

Caption: The 2023 Act displaced the Court-created interim panel because the judgment itself preserved Parliament's law-making space.

10. The 2023 Act: official-title and section map

Visual 9 - Act 49 of 2023 dashboard

Provision	Official control
long title	appointment, service, term and transaction of ECI business
s.3	composition
s.4	President appoints by warrant under hand and seal
s.5	eligibility
s.6	Search Committee
s.7	Selection Committee and vacancy/defect saving
s.8	transparent self-regulated selection procedure; power to consider outside panel
s.9	term, age, no reappointment, aggregate cap
s.10	salary equal to SC judge; related allowances
s.11	resignation and removal
s.16	protection concerning official acts/things/words
ss.17-18	transaction and disposal of business

[LIMIT] Coaching summaries frequently reproduce Bill-stage provisions. The enacted India Code text, not a Bill summary, controls.

11. Eligibility under section 5

[FACT] A CEC or EC must be appointed from among persons who hold or have held a post equivalent to the rank of **Secretary to the Government of India**.

[FACT] The person must be of integrity and possess knowledge of and experience in the **management and conduct of elections**.

[ANALYSIS] Section 5 converts a previously constitutionally unspecified qualification field into a senior-administrative eligibility pool.

[LIMIT] The provision does not require judicial office, a fixed academic degree or prior service inside the ECI.

Visual 10 - Eligibility filter

Secretary-equivalent rank
+
integrity
+
knowledge and experience in election management/conduct
=
statutory eligibility pool

12. Search Committee under section 6

[FACT] The enacted section 6 Search Committee is headed by the **Minister of Law and Justice**, with two other members not below Secretary rank.

[FACT] It prepares a panel of **five persons** for the Selection Committee.

[LIMIT] "Cabinet Secretary heads the Search Committee" is not the enacted Act 49 of 2023 rule.

Visual 11 - Search stage

Actor	Composition	Output
Search Committee	Law Minister + two Secretary-rank-or-above members	panel of five
Selection Committee	PM + LoP/largest opposition leader + PM-nominated Cabinet Minister	recommendation to President
President	constitutional appointing authority	warrant of appointment

13. Selection Committee under sections 7 and 8

[FACT] The committee comprises the Prime Minister as Chairperson, the Lok Sabha Leader of Opposition (or leader of the single largest opposition party if no LoP is recognised), and a Union Cabinet Minister nominated by the Prime Minister.

[FACT] Appointment is not invalid merely because of a vacancy in or defect in the constitution of the committee.

[FACT] The committee must regulate its procedure transparently and may consider a person outside the Search Committee's panel.

[ANALYSIS] The outside-panel power prevents the five-name panel from being a legal cage, but increases the importance of disclosed criteria and reasoned deliberation.

Visual 12 - Selection logic and accountability risk



Risk: executive has 2 of 3 seats
Need: criteria + adequate dossiers + reasons + meaningful deliberation

14. Appointment debate and current challenge

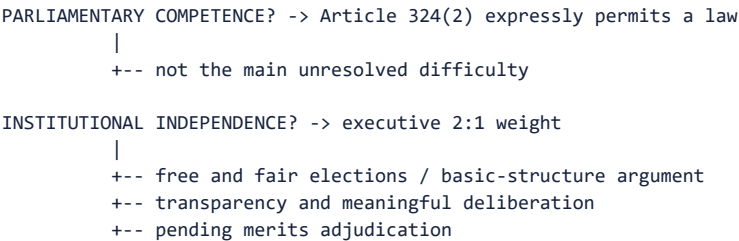
[ANALYSIS] Critics focus on executive predominance because the PM and PM-nominated Minister form two of three members. Defenders point to Parliament's express Article 324(2) authority, the LoP's participation and the Act's transparency language.

[FACT] The Supreme Court's official 22 March 2024 order refused interim replacement of the statutory panel with the CJI-inclusive panel; doing so without striking section 7 would amount to judicially rewriting the law.

[FACT] The same order expressed concern that full candidate details should be circulated to every Selection Committee member and that procedural sanctity requires fair deliberation.

[CURRENT] No official merits verdict or stay was located as of 19 August 2026.

Visual 13 - Constitutional issue tree



15. Term, age and reappointment

[FACT] Section 9 sets a six-year term from assumption of office or age 65, whichever is earlier.

[FACT] CECs and ECs are not eligible for reappointment.

[FACT] If an EC becomes CEC, combined service as EC and CEC cannot exceed six years.

[LIMIT] The six-year/65 rule is **statutory**, not textually fixed by the Constitution.

Visual 14 - Tenure calculation

END DATE = earlier of:

- A. assumption date + 6 years
- B. 65th birthday

If EC → CEC:

EC period + CEC period ≤ 6 years

Reappointment = barred

16. Salary and service conditions

[FACT] Section 10 of the enacted Act sets salary equal to that of a **Judge of the Supreme Court**, with dearness allowance on the same basis and specified leave-encashment rules.

[FACT] Article 324(5) protects the CEC against disadvantageous variation of service conditions after appointment.

[LIMIT] Do not repeat the Bill-stage claim that the enacted salary standard is that of the Cabinet Secretary.

[LIMIT] Salary parity with an SC judge does not by itself prove that the entire ECI budget is constitutionally "charged".

Visual 15 - Service-condition safeguards

Question	Safe rule
salary comparator	Supreme Court judge
constitutional non-variation protection	expressly for CEC
leave/pension/other service matters	Act and rules
automatic charged status of all ECI expenditure	no
post-retirement office ban	no general constitutional/statutory ban in this Act

17. Removal: CEC, EC and Regional Commissioner

[FACT] Article 324(5) and section 11 distinguish the offices:

- CEC: removable only in like manner and on like grounds as an SC judge.
- Other EC: removable only on the CEC's recommendation.
- Regional Commissioner: Article 324(5) also requires the CEC's recommendation.

[ANALYSIS] The asymmetry protects other ECs from direct executive pleasure but does not give them the CEC's parliamentary-removal security.

Visual 16 - Removal matrix

Office	Removal route	Relative protection
CEC	President after parliamentary address with special-majority process on proved misbehaviour/incapacity	highest
EC	President only on CEC recommendation	intermediate and asymmetric
Regional Commissioner	President only on CEC recommendation	intermediate and asymmetric

Prelims trap: Equal decision-making power does not mean identical removal protection.

18. Transaction of business

[FACT] Section 17 requires ECI business to be transacted under the Act.

[FACT] Section 18 allows the Commission, by unanimous decision, to regulate procedure and allocate business among members.

[FACT] Business should, as far as possible, be unanimous; a difference is resolved by majority.

[FACT] *T.N. Seshan v. Union of India* (1995) upheld the multi-member design and equal decisional status of ECs.

Visual 17 - Collegial decision rule

ISSUE

```

|
attempt unanimity
| yes -> Commission decision
|
no
v
majority opinion -> Commission decision

```

CEC vote = one vote; chairmanship != superior vote

19. Protection under section 16

[FACT] Section 16 states that, notwithstanding other law, no court shall entertain or continue civil or criminal proceedings against a present or former CEC/EC for an act, thing or word committed, done or spoken while acting or purporting to act in discharge of official duty or function.

[LIMIT] The enacted text is broader and differently worded than a generic "good-faith immunity" summary. It should not be paraphrased into an unlimited personal immunity for private acts.

Visual 18 - Protection boundary

Covered textual connection	Not safe to claim
act/thing/word in official duty or purported official duty	immunity for private conduct
present or former CEC/EC	abolition of constitutional judicial review of ECI decisions
civil or criminal proceeding against the person	automatic validation of an unlawful election order

20. Election administration: constitutional body, distributed machinery

[FACT] The ECI works through a national secretariat and temporary/statutory field machinery: Chief Electoral Officers, District Election Officers, Returning Officers, Electoral Registration Officers, Presiding Officers and polling personnel.

[FACT] Article 324(6) requires the President or Governor, when requested by the ECI, to make staff available for election functions.

[ANALYSIS] Operational dependence on Union and State personnel makes neutrality protocols, transfer powers during the election period, observer systems and written instructions important.

Visual 19 - Administrative chain

```
graph TD
    ECI[ECI] --> CEO[Chief Electoral Officer (State/UT)]
    CEO --> DEO[District Election Officer]
    DEO --> RO[Returning Officer]
    DEO --> ERO[Electoral Registration Officer]
    RO --> PO[Presiding Officer / polling teams]
    ERO --> PO
```

Caption: The ECI controls the election function even though much field staff belongs to ordinary government cadres.

21. Schedule and notification: distinguish announcement from legal notification

[FACT] The ECI assesses readiness and announces the election schedule.

[FACT] The formal statutory election process includes notifications issued by the President or Governor under the applicable election law and the timetable carried through by Returning Officers.

[LIMIT] "ECI alone notifies every election by its own constitutional order" is too broad.

Visual 20 - Election timetable chain

```
graph TD
    RA[readiness assessment] --> ESA[ECI schedule announcement -> MCC begins]
    ESA --> SN[statutory notification]
    SN --> N[nominations -> scrutiny -> withdrawal -> poll -> count -> return]
```

22. Electoral rolls: constitutional equality plus statutory eligibility

[FACT] Article 325 requires one general electoral roll and rejects exclusion or a special roll solely on religion, race, caste or sex.

[FACT] Under the RPA 1950, citizenship, age and ordinary residence structure entitlement; disqualifications and duplicate registration controls also apply.

[FACT] The ECI's 2023 Electoral Roll Manual explains revision, claims, objections, hearings, inclusion, correction and deletion processes.

[ANALYSIS] Roll integrity has two equal limbs: **inclusion of every eligible person** and **exclusion/correction through fair procedure**, not one-sided numerical cleansing.

Visual 21 - Roll-integrity balance

UNIVERSALITY	INTEGRITY
include eligible citizens <----->	correct duplicates/errors
accessible claims	notice + inquiry
four qualifying dates	appeal/remedy
DUE PROCESS	

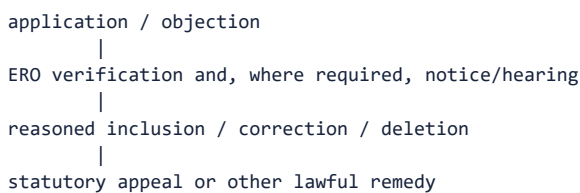
23. Qualifying dates and enrolment controls

[FACT] The present statutory framework uses four qualifying dates in a year: 1 January, 1 April, 1 July and 1 October, enabling advance applications linked to the relevant date.

[FACT] Common operational forms include Form 6 for new inclusion, Form 7 for objection/deletion requests and Form 8 for specified corrections/shifting.

[LIMIT] A form request does not itself delete or include a name; the Electoral Registration Officer must exercise the statutory function through the prescribed process.

Visual 22 - Claims and objections flow



24. Roll-revision answer discipline

[ANALYSIS] A sound answer evaluates a revision on legality, notice, evidence, inclusion safeguards, accessibility, reasons, appeal and independent review.

[LIMIT] Do not convert a State-specific special revision, draft roll or pending litigation into a permanent nationwide rule.

Visual 23 - Seven-question audit

Audit question	Why it matters
What exact order and legal provision?	avoids headline law
Who bears what proof burden?	fairness
Was prior notice practical and individualised?	due process
Were migration, homelessness, disability and documentation barriers addressed?	inclusion
Are reasons recorded?	reviewability
Is appeal accessible before poll closure?	effective remedy
Is aggregate data independently auditable?	public trust

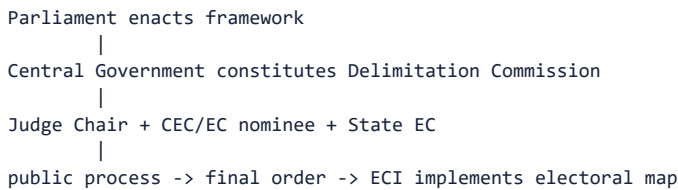
25. Delimitation: ECI assists; it is not the ordinary sole delimiting authority

[FACT] The statutory Delimitation Commission under the Delimitation Act, 2002 includes a current/former Supreme Court judge as Chairperson, the CEC or a nominated EC ex officio, and the relevant State Election Commissioner ex officio.

[FACT] Its published final orders have force of law and their validity is protected from court challenge by the statutory framework.

[LIMIT] The ECI does not ordinarily redraw all constituencies by itself. Its role is membership, assistance, later implementation and specified special statutory functions.

Visual 24 - Delimitation responsibility map



26. The 2024 Prelims fact: four Delimitation Commissions

[FACT] The locally held 2024 official Set A question asked how many Delimitation Commissions the Government of India had constituted till December 2023. The official local key records **four**.

Visual 25 - Delimitation chronology

Commission basis	Broad census linkage
1952 Act	1951 Census
1962 Act	1961 Census
1972 Act	1971 Census
2002 Act	2001 Census

[LIMIT] This count does not mean the ECI itself constituted or solely operated all four Commissions.

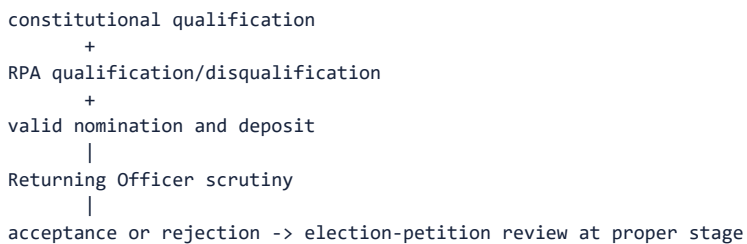
27. Candidate nominations and scrutiny

[FACT] Returning Officers receive nominations, conduct statutory scrutiny and handle withdrawal according to the RPA 1951 and Conduct of Elections Rules.

[FACT] The ECI issues binding administrative instructions within the legal framework and supervises consistency.

[LIMIT] The Commission cannot add a disqualification that Parliament has not enacted merely because it considers the candidate undesirable.

Visual 26 - Candidature legality chain



28. Advising on disqualification

[FACT] Under Articles 103 and 192, questions about specified disqualifications of sitting MPs/MLAs go to the President/Governor, who must obtain the ECI's opinion and act according to it.

[LIMIT] The ECI does not decide Tenth Schedule defection questions; those belong to the Speaker/Chairman subject to judicial review.

[LIMIT] A corrupt-practice disqualification under the RPA follows its own election-petition and statutory process; Article 324 is not an independent shortcut.

Visual 27 - Disqualification routes

Question	Decision route
Article 102/191 issue for sitting member	President/Governor -> ECI opinion -> decision according to opinion
Tenth Schedule defection	Speaker/Chairman
election void for corrupt practice	High Court election petition
conviction-based statutory disqualification	RPA operation, courts and specified remedies

29. Observers and field neutrality

[FACT] The RPA 1951 and ECI instructions support deployment of general, police, expenditure and other observers to report independently on readiness, campaign conduct, polling and counting.

[ANALYSIS] Observers reduce the information gap between Nirvachan Sadan and local administration.

[LIMIT] An observer does not replace the statutory Returning Officer or decide an election petition.

Visual 28 - Observer dashboard

Observer type	Primary lens	Typical output
General	overall conduct and level playing field	reports and corrective recommendations
Police	security, vulnerability and force deployment	security assessment
Expenditure	candidate spending and monitoring teams	shadow registers and discrepancy process
Micro-observer	critical polling station process	direct poll-day report

30. Election expenditure monitoring

[FACT] Candidates must keep and lodge election-expense accounts under the RPA 1951; expenditure ceilings arise under law and rules.

[FACT] ECI monitoring uses expenditure observers, flying squads, static surveillance teams, video teams, accounting teams and media-certification/monitoring mechanisms.

[ANALYSIS] The principal accountability gap is often the difference between candidate-account rules and the wider ecosystem of party, supporter and digital campaign spending.

Visual 29 - Expenditure-monitoring loop

```

campaign event / advertisement / distribution allegation
|
field team + video + rate card + seizure record
|
shadow observation register <-> candidate account
|
notice / reconciliation
|
lodging of account -> statutory consequence where applicable

```

31. Repoll, adjournment and countermand: lawful powers only

[FACT] Election law provides for adjournment/fresh poll in specified emergencies, destruction/loss or tampering situations and booth capturing. Article 324 supplies residual supervision where law is silent.

[FACT] *Mohinder Singh Gill* accepted broad ECI authority in a grave poll-disruption setting while insisting that constitutional power operates for free and fair elections and remains legally controlled.

[LIMIT] "The ECI may cancel any election whenever it wishes" is false. The trigger, scale, reasons, statutory field and natural-justice context matter.

Visual 30 - Integrity-response ladder

local defect
-> corrective instruction / replacement / station-level fresh poll

serious statutory event
-> adjournment or fresh poll under election law

constituency-wide vitiation
-> countermand only on lawful basis with recorded reasons

post-result validity dispute
-> High Court election petition, not ECI merits trial

32. Voter education and inclusion

[FACT] ECI's SVEEP programme supports voter awareness, registration, ethical participation and accessibility.

[ANALYSIS] Participation is an integrity issue: an accurate machine cannot compensate for an inaccessible roll or polling station.

[LIMIT] Awareness campaigns must remain non-partisan and cannot become a substitute for legal enrolment remedies.

Visual 31 - Participation architecture

INFORMATION -> REGISTRATION -> ACCESSIBILITY -> ETHICAL VOTING

| | | |

SVEEP voter services PwD/senior needs no inducement

33. Registration of political parties versus recognition

[FACT] Political-party registration is under **section 29A of the RPA 1951**.

[FACT] Recognition as a national or State party and reservation/allotment of symbols operate under the **Election Symbols (Reservation and Allotment) Order, 1968**, applying performance criteria.

[LIMIT] Registration does not automatically confer recognition or a permanently reserved symbol.

Visual 32 - Party-status ladder

association
|
application under RPA 1951 s.29A
v
registered political party
|
electoral performance under Symbols Order criteria
v
recognised State party / recognised national party

34. Symbols and disputes

[FACT] The ECI specifies free and reserved symbols and decides recognition/symbol disputes under the Symbols Order.

[FACT] *Kanhiya Lal Omar v. R.K. Trivedi* upheld the ECI's authority to issue the Symbols Order and regulate recognition and symbols.

[ANALYSIS] Symbols reduce information costs and make the ballot accessible across literacy and language differences.

[LIMIT] The ECI's symbol adjudication is quasi-judicial; it is not a general power to settle every internal property, membership or leadership dispute within a party.

Visual 33 - Split-dispute decision frame

Question	Evidence considered
Which group represents the party?	organisational and legislative support, party constitution and facts
Is an old symbol frozen?	need to prevent voter confusion
Is an interim symbol needed?	election timetable and equal treatment
Can ordinary civil rights still be litigated?	yes, outside the narrow Symbols Order decision

35. Model Code of Conduct: origin and evolution

[FACT] Official ECI material traces the first code experiment to the **1960 Kerala Assembly election**.

[FACT] The code was circulated and expanded in the early national-election experience, and an inter-party minimum-code consensus developed through the **1968-69 mid-term election period**. The present MCC is the result of successive ECI consolidation, party consultation and later additions concerning the party in power.

[LIMIT] Avoid a single simplistic sentence that the whole present MCC was enacted in 1960 or became a statute in 1968.

Visual 34 - MCC evolution timeline

1960 Kerala code
|
early national circulation and learning
|
1968-69 broader minimum-code consensus
|
successive additions: general conduct, meetings, processions,
polling day, observers, party in power, manifestos
|
current ECI manuals and instructions

36. MCC legal character

[FACT] The MCC is a **consensus-based, non-statutory code**.

[FACT] It operates from announcement of the election schedule until completion of the election process.

[FACT] Some conduct prohibited by the MCC is independently punishable under the RPA 1951, Bharatiya Nyaya Sanhita, 2023 or other law.

[ANALYSIS] The MCC's distinctive value is rapid preventive correction; prosecution under a statute has a different evidentiary and adjudicatory route.

Visual 35 - Three-layer enforcement model

Layer	Example	Consequence
MCC norm only	misuse of official publicity or announcement of new discretionary benefits	ECI direction, censure, restraint or corrective order
MCC plus statutory wrong	bribery, communal appeal, intimidation, unlawful meeting conduct	ECI response plus FIR/prosecution/election-law consequence
service/administrative control	partisan field officer or prohibited transfer	transfer, replacement, disciplinary reference

Prelims trap: Non-statutory does not mean consequence-free; it means the code itself is not a penal statute.

37. MCC content map

Visual 36 - Eight operational fields

Field	Core expectation
general conduct	no aggravation of communal/caste tensions; criticism focused on policies and record
meetings	notice, permissions and public order coordination
processions	route, timing and conflict prevention
polling day	voter freedom and authorised camps
polling booth	restricted access and official control
observers	channel serious complaints
party in power	no misuse of official machinery, public funds or discretionary announcements
manifestos	avoid promises inconsistent with constitutional ideals; disclose rationale and financing approach under ECI directions

38. MCC enforcement strengths and limits

[ANALYSIS] Strengths include immediacy, flexibility, public signalling, administrative control and ability to prevent an unfair advantage before it hardens.

[LIMIT] Weaknesses include non-penal status, contested consistency, limited speaking orders, dependence on ordinary criminal law for prosecution and delay in deciding complaints.

Visual 37 - Speed-accountability trade-off

NON-STATUTORY MCC

- + fast
- + flexible
- + preventive
- weak direct penalties
- consistency concerns

FULL STATUTORY CODE

- + clearer offences and sanctions
- litigation may slow election-time correction

[ANALYSIS] A calibrated reform can preserve rapid interim directions while requiring transparent complaint registers, reasoned outcomes and prompt referral of statutory offences.

39. EVM-VVPAT: functional architecture

[FACT] The Indian EVM system uses a Ballot Unit, Control Unit and VVPAT. The VVPAT briefly displays a paper record to the voter and stores the slip in a sealed box for verification/counting under the prescribed process.

[FACT] *Subramanian Swamy v. ECI* (2013) treated paper trail as important for free and fair elections and directed phased VVPAT introduction.

[LIMIT] A VVPAT slip is not handed to the voter to take away.

Visual 38 - Vote recording flow

```
voter presses candidate button
|
Ballot Unit signal -> Control Unit records vote
|
VVPAT prints and briefly displays candidate serial/name/symbol
|
slip falls into sealed VVPAT box
```

40. 2024 Supreme Court EVM-VVPAT control

[FACT] In *Association for Democratic Reforms v. Election Commission of India* (26 April 2024), the Supreme Court rejected return to paper ballots and universal 100% VVPAT counting.

[FACT] It directed that Symbol Loading Units used on or after 1 May 2024 be sealed, signed and kept with EVMs in the strong room for at least 45 days after declaration of results.

[FACT] On a written request within seven days by the candidates placed second or third, burnt memory/microcontrollers in 5% of EVM sets per Assembly constituency/segment are to be checked by manufacturer engineers; the requesting candidate identifies the machines and initially bears notified cost, refundable if tampering is found.

[FACT] In its official **7 May 2025** follow-up order, the Court accepted an ECI technical SOP based on self-diagnosis and mutual authentication; required ECIL/BEL engineers to conduct the check and certify the integrity of burnt memory/programs; and allowed a requesting candidate to seek a mock poll after the recorded data is first displayed. A candidate may ask that SLU data be retained for use in that mock poll.

[LIMIT] This is a request-triggered post-result verification safeguard, not a finding that EVM manipulation occurred.

Visual 39 - Judicial safeguard matrix

Demand/control	Court position
return to paper ballot	rejected
count every VVPAT slip	rejected
SLU preservation	directed for at least 45 days
microcontroller check	5% on qualifying candidate request within seven days
2025 verification SOP	ECIL/BEL check and certificate; optional mock poll after display of recorded data
inference of fraud	not made

41. How to discuss technology without amplifying unsupported claims

[ANALYSIS] A trustworthy answer separates system design, procedural custody, auditability, complaint remedy and public communication.

[LIMIT] Suspicion is not proof; institutional assurance is also not a reason to reject independent audits or reasoned disclosure.

Visual 40 - Trust framework

TECHNICAL SECURITY
+
physical chain of custody
+
candidate/agent observation
+
statistical and legal audit
+
transparent incident response
=
evidence-based confidence

42. Article 324 plenary power: the correct doctrine

[FACT] *Mohinder Singh Gill v. CEC* describes Article 324 as a plenary/reservoir power enabling necessary action where enacted law is silent.

[FACT] *A.C. Jose v. Sivan Pillai* states the limiting rule: the ECI may **supplement, not supplant**, an Act or express Rules.

[ANALYSIS] Read together, the cases create a gap-filling power, not an override power.

Visual 41 - Plenary-power decision test

Is the Constitution/statute/rule explicit?
|
yes -> ECI must follow it; cannot contradict
|
no / genuine operational gap
v
ECI may act under Article 324
|
purpose: free and fair election
|
limits: fairness, reason, proportionality, judicial review

43. Natural justice in election administration

[FACT] *Mohinder Singh Gill* recognised that orders with civil consequences ordinarily attract fairness, while the content and timing of natural justice depend on election exigency.

[ANALYSIS] Urgent preventive action may precede a full hearing, but urgency should not become a formula for arbitrary or unexplained decisions.

Visual 42 - Flexible fairness

Context	Procedural expectation
immediate violence/booth capture	urgent protective order may be necessary
candidate censure/ban with time available	notice, response and reasoned order
roll deletion	notice, inquiry and remedy
post-poll technical verification	prescribed request, presence and certification

44. Landmark case matrix

Visual 43 - Cases, holdings and boundaries

Case	Named holding for this topic	Qualification
<i>Mohinder Singh Gill</i> (1978)	Article 324 reservoir/plenary power in silence; free-and-fair purpose	legality and fairness remain
<i>A.C. Jose</i> (1984)	ECI supplements, not supplants, statute/rules	no contrary innovation
<i>Kanhiya Lal Omar</i> (1985)	Symbols Order and ECI symbol authority upheld	narrow election-symbol field
<i>T.N. Seshan</i> (1995)	multi-member ECI, equality and majority rule upheld	CEC retains distinct removal protection
<i>ADR</i> (2002) / <i>PUCCL</i> (2003)	candidate-information disclosure and voter's right to know	implement through election framework
<i>PUCCL</i> (2013)	secret NOTA option directed	NOTA plurality does not invalidate ordinary winner rule
<i>Subramanian Swamy</i> (2013)	VVPAT/paper trail directed in phases	not a return to paper ballots
<i>Anoop Baranwal</i> (2023)	interim appointment committee until parliamentary law	displaced by 2023 Act
<i>ADR v. ECI</i> (2024)	EVM-VVPAT system retained; added preservation/verification safeguards	no universal 100% count
<i>ADR electoral bonds</i> (2024)	non-disclosure violated Article 19(1)(a); disclosure directions through ECI	political-funding case, not general ECI appointment case

45. NOTA: right not to choose, not a right to reject the result

[FACT] *PUCCL v. Union of India* (2013) directed a secret NOTA option to protect voter secrecy and expression.

[LIMIT] Under the ordinary present rule, even if NOTA receives more votes than each candidate, the candidate with the highest valid candidate vote is returned; NOTA does not automatically trigger a re-election.

Visual 44 - NOTA legal effect

NOTA selected

- > secret expression of rejection
- > counted and reported
- X-> not a candidate
- X-> no automatic constituency cancellation

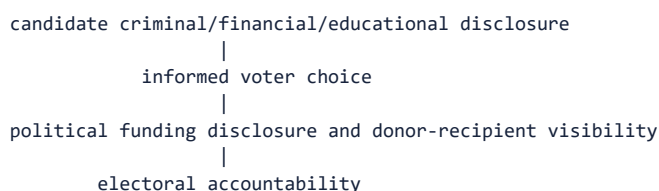
46. Candidate disclosure and political-finance transparency

[FACT] *ADR* (2002) and *PUCCL* (2003) constitutionalised the voter's right to know material candidate antecedents through disclosure.

[FACT] The 15 February 2024 electoral-bonds judgment held that non-disclosure of political funding violated Article 19(1)(a), invalidated the scheme and connected amendments, and required SBI data to be furnished to and published by the ECI.

[ANALYSIS] The ECI is both election administrator and a disclosure platform, but Parliament and courts define much of the substantive political-finance regime.

Visual 45 - Information-right ladder



47. Article 329 and the election-dispute boundary

[FACT] Article 329(b) channels a challenge to an election to Parliament or a State legislature into an election petition presented under law.

[FACT] The RPA 1951 places election petitions before the High Court, with a statutory appeal to the Supreme Court.

[FACT] *N.P. Ponnuswami* protects the election from midstream interruption; later doctrine permits judicial intervention only where it facilitates rather than retards the electoral process.

[LIMIT] The ECI declares results and administers recount/repoll mechanisms within law; it is not the final election court for returned-candidate validity.

Visual 46 - Time-sensitive judicial route

BEFORE / DURING POLL

default -> do not interrupt electoral process
narrow facilitative review may exist

AFTER RESULT

election petition -> High Court -> statutory appeal to Supreme Court

48. President and Vice-President election boundary

[FACT] Article 324 includes conduct of presidential and vice-presidential elections.

[FACT] Article 71 vests disputes relating to those elections in the Supreme Court.

[LIMIT] Do not route these disputes to a High Court election petition under the ordinary parliamentary/Assembly mechanism.

Visual 47 - Dispute forum comparison

Election	Administrative authority	Dispute forum
Parliament/State legislature	ECI machinery	High Court election petition; SC appeal
President/Vice-President	ECI machinery under special statute	Supreme Court under Article 71
Panchayat/municipality	SEC machinery	forum under State law

49. Independence safeguards and deficits

[FACT] Safeguards include constitutional status, CEC removal protection, non-variation of CEC service conditions, protection of other ECs/Regional Commissioners through the CEC-recommendation rule, a collegial majority system and broad Article 324 authority.

[ANALYSIS] Independence also depends on appointment legitimacy, control over staff, a stable secretariat, adequate finance, transparent reasons and even-handed enforcement.

Visual 48 - Independence is a system

APPOINTMENT
X
TENURE/REMOVAL
X
FINANCE/SECRETARIAT
X
COLLEGIAL PROCESS
X
TRANSPARENT ENFORCEMENT
=
EFFECTIVE INDEPENDENCE

Caption: A weak factor can reduce the practical value of the others.

50. Budget and charged-expenditure nuance

[FACT] Article 324 contains no analogue of Article 322 automatically charging the Commission's administrative expenditure on the Consolidated Fund.

[FACT] The official Union Budget 2026-27 places ECI establishment expenditure under **Demand No. 66, Election Commission**, within the Ministry of Law and Justice demands.

[FACT] The 2023 Act makes salary equal to that of an SC judge but does not state that all ECI expenditure is charged.

[FACT] *Anoop Baranwal* made a **fervent appeal**, rather than an operative constitutional declaration, that Parliament/Union consider a permanent secretariat and charged expenditure.

[LIMIT] Do not infer blanket charged status merely from salary parity.

Visual 49 - Current position versus reform

Dimension	Current control	Reform claim
institutional expenditure	Union Budget Demand No. 66	charge ECI expenditure on CFI
secretariat	ECI secretariat within present staffing/budget framework	constitutionally/statutorily independent secretariat
judicial language	appeal to consider changes	not self-executing amendment

51. Equal removal protection debate

[ANALYSIS] Giving ECs the CEC's removal protection could reduce hierarchical dependence on the CEC and protect dissent.

[LIMIT] A symmetrical rule must also preserve accountability and avoid creating members who are practically irremovable for serious misconduct.

Visual 50 - Reform options

Option	Benefit	Risk/qualification
identical parliamentary removal for all	equal independence	high threshold may impede accountability
CEC-recommendation rule plus reasons/review	preserves present design with transparency	continuing asymmetry
independent inquiry before removal	procedural legitimacy	institution and standard must be designed

52. Appointment reform options

[ANALYSIS] A credible design should combine a plural committee, published eligibility criteria, adequate dossier time, conflict rules, a public shortlist principle compatible with privacy, recorded reasons and parliamentary reporting.

[LIMIT] Judicial membership is one design choice, not the sole conceivable constitutional model.

Visual 51 - Appointment-quality funnel

broad eligible pool

- > published criteria
- > independent search
- > plural selection
- > adequate dossier time
- > recorded comparative reasons
- > President's appointment

53. Enforcement-accountability reform

[ANALYSIS] The strongest near-term reform is not simply "more power". It is **visible, consistent and reviewable use of existing power**.

Visual 52 - Complaint-to-outcome ledger

Stage	Minimum public control
complaint	date, complainant category, allegation type
preliminary view	MCC-only or statutory overlap
response	notice and time allowed
decision	rule, evidence, reason and member decision
follow-up	compliance, prosecution referral or closure
data review	comparative consistency across parties and elections

54. Electoral-roll reform options

[ANALYSIS] Reform should emphasise continuous updating, interoperable but privacy-protective death/migration data, accessible documentary alternatives, individual notice, reasoned orders, rapid appeals and independent audits.

[LIMIT] Technology must not turn a statutory entitlement into an undocumented-person exclusion test.

Visual 53 - Inclusion-first data governance

data signal of possible error

|

human verification + notice

|

accessible response / alternate proof

|

reasoned order

|

appeal + audit

55. MCC reform options

[ANALYSIS] A hybrid model is preferable:

1. retain non-statutory rapid directions for campaign fairness;
2. codify timelines and reason-giving;
3. publish a complaint/outcome database;
4. identify conduct that must be referred under RPA/BNS;
5. create proportionate, reviewable sanctions for repeated non-compliance.

Visual 54 - Hybrid MCC model

FAST ECI DIRECTION
+
reasoned public order
+
statutory referral where offence exists
+
post-election consistency audit

56. Technology and audit reform

[ANALYSIS] Improvements should be evidence-led: secure custody documentation, candidate access to prescribed checks, publishable aggregate discrepancy reports, independent technical review with source-code and security confidentiality safeguards, and fast incident communication.

[LIMIT] Neither maximal secrecy nor uncontrolled public access to security-sensitive material is a complete solution.

Visual 55 - Audit proportionality

Goal	Tool	Qualification
voter assurance	VVPAT display and prescribed count	preserve secrecy
candidate assurance	mock polls, seals, forms, SLU/microcontroller checks	request and custody rules
public assurance	aggregate audit/discrepancy data	no voter-level disclosure
security assurance	independent expert testing	protect attack surface

57. What the ECI cannot lawfully do

Visual 56 - Negative-power board

Cannot	Correct route
conduct panchayat/municipal elections under Article 324	SEC
contradict an enacted Act or Rule	Parliament/rule amendment or judicial review
invent a new candidate disqualification	Constitution/RPA
finally void a returned candidate's election	High Court election petition
decide Tenth Schedule defection	Speaker/Chairman
ordinarily delimit every constituency alone	Delimitation Commission/statutory route
convert MCC itself into a criminal statute	Parliament
treat allegations of EVM fraud as established fact	evidence and prescribed verification

58. Integrated answer-writing framework

[ANALYSIS] Every strong ECI answer should move through five moves:

1. **Constitutional claim:** Article and exact field.
2. **Named evidence:** statute, ECI manual or case.
3. **Institutional analysis:** how the mechanism protects free and fair elections.
4. **Qualification:** statutory boundary, ownership or current-status caution.
5. **Reform verdict:** precise, proportional and implementable.

Visual 57 - Claim-evidence-analysis-qualification spine

CLAIM
"Article 324 grants plenary supervision."
|
EVIDENCE
Mohinder Singh Gill + A.C. Jose
|
ANALYSIS
gap-filling authority preserves electoral integrity
|
QUALIFICATION
supplement, never supplant, enacted law
|
VERDICT
reasoned and reviewable residual action

59. Thesis selector

Demand	Qualified thesis
independence	Constitutional status is necessary but insufficient; appointment, equal collegial security, finance, staff and transparent enforcement determine practical autonomy.
Article 324 powers	Article 324 is a reservoir for statutory silence, not a charter to disobey Parliament.
MCC	The MCC's speed comes from its non-statutory form; accountability should be strengthened without losing preventive capacity.
EVM trust	Trust rests on layered custody, observation and audit, not on unsupported assurance or allegation.
rolls	Roll integrity means inclusion plus lawful correction through notice, evidence and remedy.
appointment Act	Parliament filled the Article 324(2) vacuum, but executive predominance and deliberative transparency remain under constitutional challenge.

60. Prelims trap board

Visual 58 - Close-option corrections

Wrong statement	Correction
ECI conducts all elections	excludes local bodies
Constitution fixes three members	President fixes number; present practice is three
CEC has superior vote	equal votes; majority
all members removed like SC judges	only CEC
six-year term is constitutional text	statutory
Search Committee headed by Cabinet Secretary	enacted Act: Law Minister
salary equals Cabinet Secretary	enacted Act: SC judge
selection confined to five-name panel	committee may consider outside panel
MCC is a statute	consensus-based non-statutory code
ECI can override RPA	supplement, not supplant
ECI itself finally tries election petitions	High Court
NOTA victory forces repoll	no automatic repoll
ECI directly delimits every seat	statutory Delimitation Commission
2023 Act has been upheld/struck down	no located merits verdict as of control date

Polity 27 - Election Commission - PYQ, practice and solved workbook

[FACT] This practice section begins at an H2 deliberately so that markdown_learning_pdf.py --mode workbook detects it. It contains every Election Commission demand directly routed in the local ledgers, two routed Prelims demands, 36 original MCQs, 12 remedials and eight original solved Mains questions.

[LIMIT] Exact wording is reproduced only from a readable locally held official paper or an exact quotation already preserved in the local owner. Where the ledger stores a neutral rendering, that status is explicit.

Verified routed Prelims PYQs

PYQ-P1 - UPSC Prelims 2021 GS-I Q80

Official-paper wording held locally

Consider the following statements:

1. In India, there is no law restricting the candidates from contesting in one Lok Sabha election from three constituencies.
2. In 1991 Lok Sabha Election, Shri Devi Lal contested from three Lok Sabha constituencies.
3. As per the existing rules, if a candidate contests in one Lok Sabha election from many constituencies, his/her party should bear the cost of bye-elections to the constituencies vacated by him/her in the event of him/her winning in all the constituencies.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. 1 and 3 D. 2 and 3

INFERRED KEY - NOT OFFICIALLY VERIFIED LOCALLY: B, statement 2 only. **Confidence:** high.

Explanation

- [FACT] RPA 1951 section 33(7) presently restricts a candidate to at most two constituencies in the same general election; statement 1's "three" proposition is false.

- [FACT] The locally routed historical fact records Devi Lal's 1991 three-constituency candidature; statement 2 is true.
- [FACT] The proposal that the candidate/party bear the bye-election cost has been discussed as reform, but it is not the present rule stated in statement 3.
- [LIMIT] Because the repository does not hold a readable official 2021 key, the key is inferential and is not represented as an official UPSC answer.

PYQ-P2 - UPSC Prelims 2024 GS-I Q71

Official Set A wording held locally

How many Delimitation Commissions have been constituted by the Government of India till December 2023?

A. One B. Two C. Three D. Four

Official local Set A key: D, Four.

Explanation

- [FACT] The four statutory exercises were under the Delimitation Commission Acts of 1952, 1962, 1972 and the Delimitation Act, 2002.
- [LIMIT] The fact does not make the ECI the sole delimiting authority. Under the 2002 Act, the CEC or nominated EC is an ex officio member of the statutory Delimitation Commission.

Prelims PYQ ownership control

Routed demand	Included	Ownership note
2021 multiple-constituency candidature	yes	ECI/electoral-reform interface
2024 number of Delimitation Commissions	yes	direct route, with delimitation boundary
presidential Electoral College/vote-value questions	no	President and Vice-President owner
Tenth Schedule political-party references	no	Anti-Defection owner
general political-party history matching	no	Post-Independence/Political Parties owner

Verified routed Mains PYQs with model solutions

PYQ-M1 - UPSC 2018 GS-II Q1

Official-paper wording held locally: "In the light of recent controversy regarding the use of Electronic Voting Machines (EVM), what are the challenges before the Election Commission of India to ensure the trustworthiness of elections in India?" (10 marks, 150 words)

Demand: identify challenges, not merely defend or attack EVMs.

Model solution

Thesis: [ANALYSIS] Trustworthy elections require confidence in the complete chain - roll, campaign, machine, custody, counting and remedy - rather than a binary claim about EVMs.

Machine and audit: [FACT] *Subramanian Swamy v. ECI* made VVPAT paper trail an integrity safeguard. [FACT] *ADR v. ECI* (2024) retained EVM-VVPAT, rejected universal paper counting, and ordered SLU preservation plus request-based checks of 5% burnt memories. [ANALYSIS] Verification must be visible enough to answer specific evidence, not general suspicion.

[FACT] The Supreme Court's 7 May 2025 follow-up accepted ECIL/BEL diagnostic checks and certification, with a candidate-requested mock poll possible after recorded data is displayed.

Wider challenges: [FACT] ECI must also address roll exclusion, money power through expenditure monitoring, criminal antecedent disclosure after *ADR/PUCL*, partisan field administration, misinformation and MCC enforcement. [ANALYSIS] A secure device cannot cure an unfair campaign field.

Qualification: [LIMIT] Unsupported fraud claims should not be amplified; equally, institutional confidence cannot rest on assertion alone.

Verdict: Publish aggregate audit outcomes, strengthen complaint reasons, preserve candidate-observation rights and connect machine security with roll and campaign integrity.

Outstanding-answer test: It expands "trustworthiness" beyond the device, names two judgments and ends with evidence-based reforms.

PYQ-M2 - UPSC 2019 GS-II Q11

Official-paper wording held locally: "On what grounds a people's representative can be disqualified under the Representation of Peoples Act, 1951? Also mention the remedies available to such person against his disqualification." (15 marks, 250 words)

Demand: grounds plus remedies; do not turn it into an ECI-powers essay.

Model solution

Thesis: [FACT] Disqualification is a two-layer system: Articles 102/191 supply constitutional grounds, while the RPA 1951 specifies operational statutory grounds and remedies.

Grounds: [FACT] RPA sections 8-10A cover conviction for specified offences, corrupt practices, dismissal for corruption/disloyalty, government contracts, office under a government company and failure to lodge election-expense accounts. [FACT] *Lily Thomas v. Union of India* invalidated section 8(4)'s sitting-member protection, making conviction-based disqualification immediate when the statutory threshold applies.

Constitutional decision route: [FACT] For a sitting MP/MLA question under Articles 103/192, the President/Governor obtains the ECI's opinion and acts according to it. [LIMIT] Defection belongs to the Speaker/Chairman under the Tenth Schedule.

Remedies: [FACT] An appellate stay of **conviction**, not merely sentence, can suspend the consequence; section 11 allows the ECI to remove or reduce specified disqualification; election-petition findings and High Court orders carry the RPA appeal route to the Supreme Court.

Qualification: [ANALYSIS] Speedy disposal is vital because delayed relief can consume the representative's term, but simplification cannot dilute proof where civic exclusion follows.

Verdict: Preserve strict grounds and due process while creating time-bound election benches and reasoned ECI opinions.

Outstanding-answer test: It classifies grounds, distinguishes defection, names *Lily Thomas* and states conviction-stay precisely.

PYQ-M3 - UPSC 2020 GS-II Q1

Official-paper wording held locally: "There is a need for simplification of procedure for disqualification of persons found guilty of corrupt practices under the Representation of Peoples Act". Comment. (10 marks, 150 words)

Demand: measured comment on procedure, not automatic ECI disqualification.

Model solution

Position: [ANALYSIS] Simplification is justified because the present multi-stage process can outlast the elected term, but the evidentiary standard should not be weakened.

Present chain: [FACT] A corrupt practice under section 123 is proved in a High Court election petition; section 99 may name guilty persons; section 8A disqualification then follows through the President acting on the ECI's opinion. [ANALYSIS] Fragmented forums create delay and reduce deterrence.

Reform: Establish dedicated election benches, enforce the RPA's time expectation, digitise service and evidence, require reasoned timelines and coordinate the court-ECI-President stages.

Qualification: [LIMIT] Article 324 does not authorise the ECI to bypass the petition and adjudicate guilt on its own. A six-year civic consequence requires natural justice and strict proof.

Verdict: Simplify sequence and time, not proof or appellate protection.

Outstanding-answer test: It states the actual statutory chain and avoids the common "give ECI power to disqualify immediately" overreach.

PYQ-M4 - UPSC 2022 GS-II Q11

Official-paper wording held locally: "Discuss the procedures to decide the disputes arising out of the election of a Member of the Parliament or State Legislature under the Representation of the People Act, 1951. What are the grounds on which the election of any returned candidate may be declared void? What remedy is available to the aggrieved party against the decision? Refer to the case laws." (15 marks, 250 words)

Demand: procedure, void grounds, remedy and case law.

Model solution

Constitutional frame: [FACT] Article 329(b) channels a challenge to a parliamentary or State-legislature election into an election petition. *N.P. Ponnuswami* explains why courts ordinarily do not interrupt the process mid-election.

Procedure: [FACT] Under sections 80 and 80A, only an election petition is used and the High Court tries it; section 81 prescribes filing within 45 days; section 83 requires material facts and full particulars of corrupt practice; parties, trial and orders follow the RPA framework.

Void grounds: [FACT] Section 100 includes lack of qualification/disqualification, corrupt practice by the returned candidate/election agent, improper rejection of nomination, and material effect from improper acceptance, corrupt practice by others, improper reception/refusal/rejection of votes or non-compliance with Constitution, Act, Rules or orders.

Remedy: [FACT] The High Court may dismiss the petition, void the election or declare another candidate elected where legal conditions are met. Section 116A provides appeal to the Supreme Court.

Case law: [FACT] *Indira Nehru Gandhi v. Raj Narain* protects free and fair elections and judicial review; *Mohinder Singh Gill* distinguishes ECI administration from the post-result petition.

Verdict: The design avoids mid-poll fragmentation but needs time-bound adjudication so the remedy remains meaningful.

Outstanding-answer test: It answers all four limbs and keeps the ECI/court boundary clear.

PYQ-M5 - UPSC 2022 GS-II Q15 - direct routed demand

Exact official-paper wording held locally: "Discuss the role of the Election Commission of India in the light of the evolution of the Model Code of Conduct." (15 marks, 250 words)

Demand: link institutional role with evolution, legal status, enforcement and limits.

Model solution

Thesis: [FACT] The MCC is a consensus-based, non-statutory code through which the ECI converts Article 324's free-and-fair-election mandate into rapid campaign-time standards.

Evolution: [FACT] ECI material traces a code to the 1960 Kerala election; early national circulation and the 1968-69 mid-term election experience developed a minimum inter-party code. Successive ECI consultations added rules for meetings, processions, polling, manifestos and the party in power.

ECI role: [FACT] From schedule announcement to completion, the ECI receives complaints, obtains responses, censures or restrains campaigners, regulates official machinery and transfers, and refers independently illegal conduct for statutory action. [ANALYSIS] Its preventive speed protects the level playing field before harm becomes irreversible.

Legal overlap: [FACT] Bribery, undue influence, communal appeals and specified offences may attract the RPA 1951, BNS 2023 or other law even though the MCC itself is not a penal statute.

Limits: [LIMIT] Direct sanctions are limited; consistency and reason-giving are contested; criminal adjudication remains with ordinary institutions.

Verdict: Retain the MCC's flexible form but publish complaint timelines, reasoned outcomes and statutory-referral data to combine speed with accountability.

Outstanding-answer test: It avoids falsely calling the MCC law and gives a dated, qualified evolution.

PYQ-M6 - UPSC 2024 GS-II Q1

Exact wording preserved in the local owner: “Examine the need for electoral reforms as suggested by various committees with particular reference to ‘one nation - one election’ principle.” (10 marks, 150 words)

Demand: committee-linked reform need, with ONOE as a special focus rather than the entire answer.

Model solution

Thesis: [ANALYSIS] India needs reforms in funding, criminalisation, roll integrity, ECI independence and dispute speed; simultaneous elections are one contested institutional proposal within that larger agenda.

Need: [FACT] Candidate disclosure cases, *Lily Thomas*, the electoral-bonds judgment and repeated ECI/Law Commission proposals identify transparency, decriminalisation and administrative-independence deficits.

ONOE case: [ANALYSIS] Supporters cite reduced repeated election expenditure, fewer recurring MCC interruptions and administrative continuity.

Costs: [FACT] Synchronisation would require constitutional and statutory change concerning House terms and mid-term dissolution. [ANALYSIS] It may nationalise State mandates, burden ECI logistics and weaken periodic accountability.

Qualification: [LIMIT] As of the control date, the proposal remains legislative business, not an implemented constitutional rule. This package cross-links its full status to Parliament/federalism owners.

Verdict: Implement consensus reforms now; test simultaneous elections against federal consent, constructive no-confidence or remainder-term design, ECI capacity and judicial safeguards.

Outstanding-answer test: It neither dismisses nor celebrates ONOE and protects the broader reform demand.

PYQ-M7 - UPSC 2025 GS-II Q1

Official-paper wording held locally: “Discuss the ‘corrupt practices’ for the purpose of the Representation of the People Act, 1951. Analyze whether the increase in the assets of the legislators and/or their associates, disproportionate to their known sources of income, would constitute ‘undue influence’ and consequently a corrupt practice.” (10 marks, 150 words)

Demand: define corrupt practices, then analyse the specific undue-influence proposition.

Model solution

Definition: [FACT] Section 123 includes bribery, undue influence, specified identity/religious appeals, promotion of enmity, false statements about a candidate, prohibited transport, excess expenditure and obtaining prohibited assistance from government servants.

Undue influence: [FACT] Section 123(2) targets direct or indirect interference with the free exercise of an electoral right.

Asset question: [ANALYSIS] Disproportionate growth in a legislator's or associate's assets may indicate corruption, tax or disclosure concerns, but without an election nexus showing coercion or interference with voter freedom it does not automatically become section 123(2) undue influence.

Named evidence: [FACT] *ADR* and *PUCL* protect the voter's right to candidate information. [ANALYSIS] The correct immediate response is full, verifiable disclosure and lawful investigation, not distortion of an electoral term.

Qualification: [LIMIT] A specific inducement funded by illicit assets could separately satisfy bribery or another corrupt practice if its elements are proved.

Verdict: Enforce disclosure and anti-corruption law rigorously while retaining strict element-based interpretation of corrupt practices.

Outstanding-answer test: It distinguishes unexplained enrichment from interference with the electoral right.

Mains PYQ coverage control

Year	Demand	Status
2018	EVM controversy and trustworthy elections	exact official wording + solution
2019	RPA disqualification grounds and remedies	exact official wording + solution
2020	simplify corrupt-practice disqualification	exact official wording + solution
2022 Q11	election disputes under RPA	exact official wording + solution
2022 Q15	ECI and MCC evolution	exact official wording + solution
2024	electoral reforms with ONOE	exact local-owner wording + solution
2025	corrupt practices and disproportionate assets	exact official wording + solution

Original MCQ loop - strict continuous A -> B -> C -> D rotation

OM1. Article 324 field

Which election is within the ECI's Article 324 field?

A. Election to the office of Vice-President B. Election to a municipal corporation C. Election to a Gram Panchayat D. Election to a cooperative society

Answer: A.

Explanation: [FACT] Article 324 expressly covers President and Vice-President; local bodies belong to SECs.

OM2. Local-body boundary

Superintendence of municipal elections is constitutionally vested in:

A. Parliament B. the State Election Commission C. the Election Commission of India D. the State Public Service Commission

Answer: B.

Explanation: [FACT] Article 243ZA routes municipal elections to the SEC.

OM3. Article 325

Article 325 principally prohibits:

A. all residence requirements for enrolment. B. every electoral disqualification. C. exclusion from or claim to a special roll only on religion, race, caste or sex. D. Parliament from making election law.

Answer: C.

Explanation: [FACT] One general roll coexists with citizenship, age and ordinary-residence rules.

OM4. Constitutional term

Which statement is correct?

A. Article 324 fixes a six-year term. B. Article 324 fixes retirement at 65. C. The Constitution mandates exactly two ECs. D. Six years or age 65 is a statutory rule under the 2023 Act.

Answer: D.

Explanation: [FACT] The Constitution leaves service conditions/tenure to law; section 9 supplies the present rule.

OM5. Composition

The number of other Election Commissioners is:

A. fixed from time to time by the President within the constitutional/statutory framework. B. permanently two under the Constitution. C. fixed by the Chief Justice of India. D. fixed by each State legislature.

Answer: A.

Explanation: [FACT] Article 324(2) and section 3 do not constitutionalise the present number two.

OM6. Regional Commissioner

A Regional Commissioner under Article 324:

A. heads the State Election Commission. B. may be appointed by the President after consultation with the ECI to assist it. C. is elected by State legislatures. D. finally decides election petitions.

Answer: B.

Explanation: [FACT] The office is an assistance mechanism, not the local-body authority.

OM7. Anoop Baranwal

The most accurate statement is:

A. It permanently amended Article 324 to add the CJI. B. It struck down all appointments made before 2023. C. It created a CJI-inclusive interim committee until Parliament made a law. D. It prohibited Parliament from legislating on appointments.

Answer: C.

Explanation: [FACT] The operative direction expressly lasted till parliamentary law.

OM8. 2023 Act status

As on 19 August 2026, the safest statement is:

A. The Act has been struck down. B. The CJI has been restored by final judgment. C. The Act is stayed. D. The Act operates; no located official stay or merits verdict permits saying upheld or struck down.

Answer: D.

Explanation: [CURRENT] The 2024 stay applications were dismissed; no later official merits disposition was located.

OM9. Eligibility

Section 5 requires, among other things:

A. holding or having held Secretary-equivalent rank and election-management knowledge/experience. B. ten years as a High Court judge. C. prior service as a Returning Officer in three elections. D. a constitutional-law doctorate.

Answer: A.

Explanation: [FACT] These are the enacted statutory qualifications.

OM10. Search Committee

The enacted Search Committee is headed by:

A. the Cabinet Secretary. B. the Minister of Law and Justice. C. the Chief Election Commissioner. D. the Chief Justice of India.

Answer: B.

Explanation: [FACT] Section 6 controls; Bill-stage summaries must not replace it.

OM11. Outside-panel power

Under section 8, the Selection Committee:

A. can only accept the first-ranked panel name. B. must return the panel if the LoP dissents. C. may consider a person outside the Search Committee panel. D. must disclose its vote publicly before appointment.

Answer: C.

Explanation: [FACT] The outside-panel power is express, subject to transparent procedure.

OM12. Vacancy clause

An appointment recommendation is not invalid merely because:

A. the candidate lacks section 5 eligibility. B. the President did not issue a warrant. C. there was no Selection Committee recommendation. D. there is a vacancy in or defect in constitution of the Selection Committee.

Answer: D.

Explanation: [FACT] Section 7(2) is a saving clause, not a waiver of the whole Act.

OM13. Tenure aggregation

If an EC later becomes CEC:

A. combined EC and CEC service cannot exceed six years. B. a fresh six-year CEC term automatically begins. C. retirement age rises to 68. D. reappointment is permitted once.

Answer: A.

Explanation: [FACT] Section 9 caps aggregate service and bars reappointment.

OM14. Salary

The enacted 2023 Act equates salary with that of:

A. the Cabinet Secretary. B. a Judge of the Supreme Court. C. the Attorney-General. D. a Member of Parliament.

Answer: B.

Explanation: [FACT] Section 10 uses the Supreme Court judge comparator.

OM15. Removal

Which distinction is correct?

A. Every EC is removed by parliamentary impeachment. B. The CEC serves during presidential pleasure. C. The CEC has the SC-judge route; another EC requires the CEC's recommendation. D. Regional Commissioners have no removal protection.

Answer: C.

Explanation: [FACT] Article 324(5) creates removal asymmetry.

OM16. Collegial business

Where the three members differ:

A. the President decides. B. the CEC's view automatically prevails. C. the matter must remain undecided. D. the majority opinion decides.

Answer: D.

Explanation: [FACT] Section 18 and *T.N. Seshan* establish majority rule.

OM17. Section 16 protection

The most precise description is:

A. protection concerns official or purported-official acts, things or words by a present/former CEC or EC. B. absolute immunity extends to every private act. C. all ECI orders become immune from judicial review. D. only defamation claims are covered.

Answer: A.

Explanation: [FACT] The textual connection to official function must be preserved.

OM18. Election staff

Article 324(6) supports:

A. permanent transfer of every State officer to ECI. B. making staff available to the ECI when requested for election functions. C. ECI recruitment to all civil services. D. removal of Governors during elections.

Answer: B.

Explanation: [FACT] Field administration relies on staff made available by the Union/States.

OM19. Election schedule

Which is the correct distinction?

A. The MCC waits until polling begins. B. Returning Officers independently choose national dates. C. ECI announces the schedule, while statutory notifications form part of the legal election process. D. Courts announce the timetable.

Answer: C.

Explanation: [FACT] Administrative announcement and legal notification should not be collapsed.

OM20. Electoral roll integrity

The soundest principle is:

A. deletion accuracy alone defines integrity. B. inclusion alone defines integrity. C. aggregate numbers matter more than individual remedy. D. integrity combines eligible inclusion, lawful correction, notice and remedy.

Answer: D.

Explanation: [ANALYSIS] Both completeness and accuracy must operate through due process.

OM21. Article 325 and residence

Article 325:

A. does not eliminate lawful ordinary-residence and age conditions. B. permits religion-specific rolls. C. applies only to local elections. D. makes citizenship irrelevant.

Answer: A.

Explanation: [FACT] Anti-discrimination in roll structure coexists with statutory eligibility.

OM22. Delimitation

In the ordinary 2002 Act design, the ECI:

A. alone redraws all constituencies. B. participates through the CEC or nominated EC in the statutory Delimitation Commission. C. has no connection with delimitation. D. may disregard final delimitation orders.

Answer: B.

Explanation: [FACT] Membership/assistance is different from sole authority.

OM23. Party status

Which is correct?

A. Registration automatically creates national-party status. B. Every registered party receives a permanently reserved symbol. C. Registration under RPA section 29A and recognition under the Symbols Order are distinct. D. Recognition is decided by Parliament resolution.

Answer: C.

Explanation: [FACT] Recognition follows performance criteria under the Symbols Order.

OM24. Symbol disputes

Kanhiya Lal Omar is associated with:

A. presidential election disputes. B. NOTA. C. EVM microcontroller checks. D. validity of the Symbols Order and ECI symbol authority.

Answer: D.

Explanation: [FACT] It is the core symbol-order authority.

OM25. MCC origin

The safest evolution statement is:

A. a Kerala 1960 code evolved through later national consensus and ECI additions. B. Parliament enacted the MCC in 1960. C. the Supreme Court wrote the entire MCC in 1968. D. the MCC began only after EVMs.

Answer: A.

Explanation: [FACT] Evolution, not one-time enactment, is the correct frame.

OM26. MCC operation

The MCC ordinarily starts:

A. on filing of the first nomination. B. with announcement of the election schedule. C. at the start of polling. D. after results.

Answer: B.

Explanation: [FACT] ECI's official FAQ uses schedule announcement to completion.

OM27. MCC legal character

Which statement is correct?

A. Every MCC breach is automatically a criminal offence. B. The MCC has no enforceable consequence of any kind. C. The MCC is non-statutory, but overlapping conduct may violate penal/election law. D. Only the Supreme Court may enforce it.

Answer: C.

Explanation: [FACT] Code consequence and statutory prosecution are distinct layers.

OM28. MCC reform

The best calibrated reform is:

A. abolish all rapid directions. B. criminalise every campaign disagreement. C. make decisions secret to avoid controversy. D. preserve rapid directions while requiring timelines, reasons and statutory referral.

Answer: D.

Explanation: [ANALYSIS] The hybrid model protects both speed and accountability.

OM29. VVPAT

VVPAT primarily provides:

A. a voter-visible paper verification trail stored in a sealed box. B. a paper receipt for the voter to take home. C. online publication of each vote. D. automatic recount of every constituency.

Answer: A.

Explanation: [FACT] Voter secrecy and sealed custody are central.

OM30. 2024 EVM judgment

The Supreme Court in April 2024:

A. ordered return to paper ballots. B. retained EVM-VVPAT and added SLU/microcontroller safeguards. C. ordered 100% VVPAT counting. D. found systematic tampering.

Answer: B.

Explanation: [FACT] None of the three contrary propositions was the holding.

OM31. Microcontroller verification

The Court-directed check may be requested by:

A. any voter at any time. B. only the winning candidate. C. candidates placed second or third, within the prescribed seven-day period. D. only a High Court after an election petition.

Answer: C.

Explanation: [FACT] The request triggers checks of 5% of EVM sets in the relevant segment.

OM32. NOTA

Under the ordinary current rule:

A. NOTA is ignored and not counted. B. NOTA is a candidate. C. NOTA plurality automatically disqualifies all candidates. D. NOTA records secret rejection but does not automatically require a repoll.

Answer: D.

Explanation: [FACT] *PUCL* protects expression/secrecy, not a binding right to reject the result.

OM33. Article 324 doctrine

Mohinder Singh Gill supports:

A. residual/plenary ECI power where law is silent. B. ECI power to repeal statutes. C. permanent immunity from judicial review. D. ECI trial of election petitions.

Answer: A.

Explanation: [FACT] The reservoir is directed to free and fair election administration.

OM34. Statutory limit

A.C. Jose establishes that the ECI:

A. may ignore Conduct of Election Rules. B. supplements but cannot supplant an occupied statutory field. C. can create criminal offences by instruction. D. controls local-body elections.

Answer: B.

Explanation: [FACT] Express law prevails over contrary ECI innovation.

OM35. Election petition

The ordinary forum to try a parliamentary or Assembly election petition is:

A. the ECI. B. the District Election Officer. C. the High Court. D. Parliament's privileges committee.

Answer: C.

Explanation: [FACT] RPA 1951 section 80A supplies the High Court forum.

OM36. Independence evaluation

Which conclusion is strongest?

A. Removal protection alone guarantees independence. B. Appointment alone determines every outcome. C. More power always means more independence. D. appointment, tenure, finance, staff, collegiality and transparent enforcement interact.

Answer: D.

Explanation: [ANALYSIS] Institutional independence is systemic and multiplicative.

Remedial MCQs - strict continuation A -> B -> C -> D rotation

RM1. CEC chairmanship trap

Calling the CEC "Chairman" means:

A. institutional chairmanship, not a superior deciding vote. B. power to veto both ECs. C. power to remove ECs directly. D. exclusive power to allocate every symbol.

Answer: A.

Explanation: [FACT] Equality and majority rule survive chairmanship.

RM2. Removal asymmetry

Another EC can be removed:

A. only through the same parliamentary address as the CEC. B. only on the CEC's recommendation. C. at the Prime Minister's pleasure. D. by majority vote of the Commission.

Answer: B.

Explanation: [FACT] Article 324(5) uses the CEC-recommendation safeguard.

RM3. Search-selection distinction

Which statement is correct?

A. The Search Committee appoints the CEC. B. The President prepares the five-name panel. C. The Search Committee prepares a panel; the Selection Committee recommends. D. The Supreme Court confirms the appointment.

Answer: C.

Explanation: [FACT] Appointment itself is by presidential warrant.

RM4. Salary-charged trap

Which is safest?

A. Every ECI expense is constitutionally charged because salary equals an SC judge's. B. Article 322 directly covers ECI. C. Demand No. 66 proves permanent constitutional charging. D. Salary parity does not itself create blanket charged status; a reform proposal seeks fuller financial autonomy.

Answer: D.

Explanation: [FACT] The statute and budget must be read separately from reform demands.

RM5. Roll deletion

A possible database mismatch should first lead to:

- A. verification, notice and a reasoned statutory process. B. automatic mass deletion. C. postponement of all elections. D. loss of citizenship.

Answer: A.

Explanation: [ANALYSIS] A data signal is not an adjudication.

RM6. Delimitation owner

The ordinary final map under the 2002 framework comes from:

- A. the ECI acting alone. B. the statutory Delimitation Commission. C. the Finance Commission. D. the Inter-State Council.

Answer: B.

Explanation: [FACT] ECI participation must not be converted into sole ownership.

RM7. MCC-statutory overlap

An MCC complaint alleging bribery should be treated as:

- A. only a moral issue. B. automatically proved criminal guilt. C. an MCC issue plus referral/investigation under applicable law where elements exist. D. an election petition before polling.

Answer: C.

Explanation: [FACT] Administrative prevention and penal proof are separate.

RM8. Article 324 gap

If a Rule expressly requires method X, the ECI:

- A. may replace it with Y whenever administratively convenient. B. may disregard it during a close election. C. must seek the CJI's permission. D. must follow X unless lawfully changed; Article 324 cannot contradict it.

Answer: D.

Explanation: [FACT] A.C. Jose is the controlling correction.

RM9. Observer role

An election observer principally:

- A. independently observes/reports and supports corrective supervision. B. replaces the High Court. C. recognises political parties. D. appoints the CEC.

Answer: A.

Explanation: [FACT] Observers close information gaps but do not absorb statutory offices.

RM10. NOTA remedy

If NOTA tops the tally under the ordinary present rule:

- A. the Governor appoints a candidate. B. the highest-voted candidate remains returned; no automatic repoll follows merely from NOTA. C. the ECI permanently bans all candidates. D. the seat is abolished.

Answer: B.

Explanation: [FACT] NOTA is expressive, not a candidate or binding reject option.

RM11. Appointment status

Which answer respects the control date?

A. The Supreme Court has finally upheld section 7. B. The Act has ceased to operate. C. The official 2024 stay refusal stands, while no located official merits verdict permits a final-validity claim. D. *Anoop Baranwal* permanently bars parliamentary law.

Answer: C.

Explanation: [CURRENT] This formulation separates located orders from unresolved merits.

RM12. Best Mains method

An examiner-grade paragraph should normally use:

A. accusation -> slogan -> prediction. B. definition -> unrelated statistic -> conclusion. C. case name without holding -> reform wish. D. claim -> named evidence -> analysis -> qualification.

Answer: D.

Explanation: [ANALYSIS] This sequence makes legal control and evaluative reasoning visible.

Original solved Mains practice

M1. Article 324 is a reservoir of electoral power, not a source of power contrary to law. Explain. (10 marks, 150 words)

Model solution

Thesis: [FACT] Article 324 vests plenary superintendence, direction and control in the ECI; [ANALYSIS] its breadth enables gap-filling action needed for free and fair elections, not displacement of parliamentary law.

Power: [FACT] In *Mohinder Singh Gill v. CEC*, the Supreme Court described Article 324 as a reservoir of authority where enacted law is silent. This supports urgent repoll directions, administrative safeguards, the MCC and other integrity measures where no contrary rule occupies the field.

Limit: [FACT] *A.C. Jose v. Sivan Pillai* held that the ECI must supplement rather than supplant the Act and Rules. [ANALYSIS] Otherwise, an unelected administrator could rewrite the democratic rules Parliament was constitutionally authorised to enact under Article 327.

Procedural control: [FACT] Natural justice is context-sensitive; election urgency may alter timing, but reason, relevance and judicial review remain.

Qualification: [LIMIT] Plenary does not mean final power to void a returned candidate's election; that belongs to the election-petition court.

Verdict: Article 324 is strongest when used as a legally disciplined reserve: decisive in a vacuum, obedient in an occupied field.

Why this earns marks: It states both leading cases, supplies a functional example and ends with the supplement-not-supplant rule.

M2. Distinguish the constitutional position of the CEC from that of the other Election Commissioners. (10 marks, 150 words)

Model solution

Thesis: [FACT] The CEC is first among equals in institutional chairmanship but enjoys a distinct removal safeguard.

Equality: [FACT] Article 324 permits a multi-member Commission. Section 18 of the 2023 Act prefers unanimity and sends differences to majority. *T.N. Seshan* rejected CEC decisional supremacy. [ANALYSIS] Each member therefore has an equal vote in Commission business.

Distinct position: [FACT] The CEC acts as Chairman and is removable only like an SC judge. The CEC's service conditions cannot be varied to disadvantage after appointment.

Other ECs: [FACT] They have equal decisional power, the same statutory salary and term framework, but can be removed only on the CEC's recommendation rather than through the CEC's parliamentary route.

Qualification: [LIMIT] "Only on CEC recommendation" is protection against direct pleasure removal, yet it remains weaker and creates dependence on the Chair.

Verdict: Functional equality and security asymmetry coexist; reform should protect collegial dissent while preserving accountability.

Why this earns marks: It separates vote, chairmanship, service conditions and removal rather than saying simply "CEC is superior".

M3. Critically examine the appointment architecture created by the 2023 Act. (15 marks, 250 words)

Model solution

Thesis: [FACT] The 2023 Act validly occupies Parliament's express Article 324(2) law-making space; [ANALYSIS] its unresolved legitimacy issue is whether executive predominance provides sufficient institutional independence and deliberative transparency.

Architecture: [FACT] Section 5 uses Secretary-equivalent rank, integrity and election-management experience. Section 6 gives a Law-Minister-led Search Committee power to prepare five names. Section 7 creates the PM-LoP-PM-nominated Minister committee, with a vacancy/defect saving clause. Section 8 requires transparent procedure but allows selection outside the panel. The President appoints by warrant.

Strengths: A statutory process replaces the previous vacuum; eligibility and Opposition participation are express; procedure must be transparent; current appointment does not depend on an unregulated executive convention.

Concerns: [ANALYSIS] The executive holds two of three votes; the Search Committee is executive-led; outside-panel choice may weaken search discipline; the vacancy clause can reduce plural participation; the Act does not require public comparative reasons.

Named evidence: [FACT] *Anoop Baranwal* created a CJI-inclusive committee only till parliamentary law. The official 22 March 2024 order refused to rewrite section 7 at the interim stage but stressed full dossiers and fair deliberation.

Current control: [CURRENT] The Act operates; no official merits verdict or stay was located as of 19 August 2026.

Reform: publish criteria, ensure adequate dossier time, record comparative reasons, strengthen search independence and consider a committee whose majority is not controlled by the incumbent executive.

Verdict: Parliamentary competence is clear; constitutional adequacy must be judged by whether the process credibly insulates electoral administration from partisan dependence.

Why this earns marks: It evaluates the enacted sections rather than a Bill summary and accurately limits *Anoop Baranwal*.

M4. The Model Code of Conduct succeeds through speed but is weakened by opacity. Discuss. (15 marks, 250 words)

Model solution

Thesis: [ANALYSIS] The MCC is effective because a non-statutory code allows immediate preventive correction during a short campaign; its legitimacy weakens when similar complaints yield delayed or unexplained outcomes.

Evolution and authority: [FACT] Beginning with the Kerala 1960 experiment and broader 1968-69 consensus, the MCC evolved through party consultation and ECI instructions. It operates from schedule announcement to completion under Article 324 supervision.

Speed advantage: The ECI can stop misuse of official machinery, seek responses, censure speakers, order transfers and restrain announcements before electoral advantage becomes irreversible. [ANALYSIS] A criminal trial after polling cannot restore an already distorted campaign field.

Legal overlap: [FACT] Bribery, undue influence, communal appeals and other conduct may independently attract the RPA/BNS. [LIMIT] MCC censure is not a finding of criminal guilt.

Opacity problem: complaint status, evidence, member votes, precedent and reasons may not be consistently visible. [ANALYSIS] Selective appearance is itself an institutional cost because neutrality must be demonstrable.

Reform: publish a real-time complaint ledger; specify response/decision timelines; issue speaking orders; identify statutory referrals; audit cross-party consistency after each election.

Qualification: [LIMIT] Turning the whole code into criminal law could sacrifice preventive flexibility and invite delay.

Verdict: Retain non-statutory speed, but constitutionalise its credibility through transparent, proportionate and reviewable administration.

Why this earns marks: It explains the mechanism of speed, the statutory overlap and a hybrid reform rather than choosing a false statutory/non-statutory binary.

M5. Evaluate the ECI's role in maintaining accurate and inclusive electoral rolls. (15 marks, 250 words)

Model solution

Thesis: [FACT] Article 324 and the RPA 1950 make roll preparation and revision a core ECI responsibility; [ANALYSIS] accuracy is legitimate only when pursued with equal commitment to inclusion and due process.

Legal structure: Article 325 guarantees one general roll without specified identity discrimination. The RPA uses citizenship, age, ordinary residence and lawful disqualification. EROs process inclusion, correction and deletion under ECI supervision; the 2023 Roll Manual details claims, objections, notice, inquiry and appeals.

Inclusion role: continuous updating, four qualifying dates, online/physical access, field verification, accessible forms, SVEEP and targeted support for migrants, homeless persons, persons with disabilities and young electors.

Integrity role: duplicate/error checks, death and shifting information, reasoned correction, public draft/final publication and objection process.

Risk: [ANALYSIS] mass data matching can create false positives; short timelines and rigid documents can disproportionately exclude mobile and poor citizens. A database flag is evidence for inquiry, not a deletion order.

Current qualification: [LIMIT] State-specific revision rules and litigation are volatile; the exact ECI order must be cited before assessing legality.

Reform: individual notice, alternate proof, assisted filing, reasoned orders, rapid pre-poll appeals, privacy safeguards and independent aggregate audits.

Verdict: Roll purity is not the smallest roll; it is the most complete lawful roll produced by a reviewable process.

Why this earns marks: It balances inclusion and cleansing, names the legal architecture and protects current-status discipline.

M6. How do party registration, recognition and symbol adjudication illustrate the ECI's quasi-judicial role? (15 marks, 250 words)

Model solution

Thesis: [FACT] The ECI regulates entry and electoral identity through different legal instruments; [ANALYSIS] its quasi-judicial character is clearest when facts, rival claims and legal criteria must be applied through reasoned decisions.

Registration: RPA 1951 section 29A governs registration. It brings an association into the statutory political-party framework but does not guarantee recognition.

Recognition: The Symbols Order, 1968 applies electoral-performance criteria to national and State recognition and reserves symbols accordingly.

Split disputes: The ECI evaluates organisational and legislative support, party constitution and election urgency; it may freeze a disputed symbol and give temporary symbols to avoid voter confusion.

Named evidence: [FACT] *Kanhiya Lal Omar v. R.K. Trivedi* upheld the Symbols Order and ECI authority in recognition and symbol matters.

Analysis: Symbols serve ballot accessibility and stable political identity. A neutral decision therefore protects both competing factions and electors.

Limits: [LIMIT] Registration is not recognition; symbol adjudication is not a general jurisdiction over property, ideology or every internal membership dispute. Civil courts and other legal forums retain their fields, and ECI decisions remain judicially reviewable.

Reform: publish criteria, procedural calendars, evidence summaries and reasoned interim/final orders; develop transparent rules for internal-democracy disclosures without claiming powers Parliament has not conferred.

Verdict: Quasi-judicial legitimacy rests on bounded jurisdiction, consistent precedent and visible reasons.

Why this earns marks: It separates three commonly collapsed functions and attaches a case plus jurisdictional limit.

M7. Design an institutional reform package to strengthen ECI independence without weakening accountability. (20 marks, 250 words)

Model solution

Thesis: [ANALYSIS] Independence and accountability are complements: insulation from partisan command must be paired with plural appointment, internal checks, reasoned action, financial visibility and judicial remedy.

1. Appointment: use a plural committee without an automatic incumbent-executive majority; an independent search body; published criteria; adequate dossiers; conflict declarations and comparative reasons.

2. Tenure/removal: consider equal removal protection for ECs, but add an independent misconduct-inquiry stage so security does not become impunity.

3. Secretariat: [FACT] *Anoop Baranwal* appealed for a permanent independent secretariat. Create a statutory cadre/appointment framework with transparent deputation and transfer rules.

4. Finance: provide a separately presented ECI budget and consider charged expenditure through constitutional/statutory change; retain audit by the CAG and parliamentary outcome scrutiny.

5. Collegiality: publish business-allocation regulations, recusals and, where legally possible, majority/minority reasons in important matters.

6. Enforcement: public MCC complaint ledger, decision deadlines, speaking orders, statutory-offence referrals and consistency audits.

7. Rolls/technology: due-process roll controls, independent aggregate audits, secure custody records and accessible court-directed EVM checks.

8. Judicial interface: fast election benches and expedited review that does not derail live polling.

Qualification: [LIMIT] No reform should transfer election management to courts or Parliament, expose security-sensitive details, or make commissioners unanswerable.

Verdict: The test is institutional distance from the government of the day plus visible fidelity to law, evidence and equal treatment.

Why this earns marks: It treats the ECI as a full system and attaches an accountability control to every autonomy proposal.

M8. "Electoral trust is an ecosystem, not a machine question." Critically analyse the statement with reference to the ECI. (20 marks, 250 words)

Model solution

Thesis: [ANALYSIS] EVM integrity is essential, but electoral trust emerges from the combined credibility of the roll, campaign, personnel, voting technology, custody, count, disclosure and remedy.

Roll: [FACT] Article 325 and the RPA 1950 require an inclusive, accurate general roll. Unreasoned deletion can disenfranchise before a machine is used.

Campaign: MCC neutrality, expenditure monitoring, candidate disclosure and action against bribery or communal appeals determine whether choice is free.

Personnel: Article 324(6), observers and transfer controls address the risk of partisan field administration.

Machine and audit: [FACT] *Subramanian Swamy* introduced VVPAT. *ADR v. ECI* (2024) retained EVM-VVPAT while ordering SLU preservation and request-based 5% microcontroller verification. [ANALYSIS] These are layered assurance mechanisms, not proof of fraud.

Information: [FACT] *ADR/PUCL* candidate disclosure and the electoral-bonds judgment protect informed choice.

Remedy: Article 329 and RPA petitions balance uninterrupted polling with post-result judicial challenge; reasoned ECI complaints and technical verification supply earlier remedies.

Critical side: [LIMIT] Institutional assurance can become opaque, while unsupported allegations can corrode confidence. Both secrecy and speculation are poor substitutes for auditable evidence.

Reform: publish custody/audit aggregates, complaint outcomes and roll metrics; protect security and voter secrecy; provide rapid independent review.

Verdict: The ECI should answer distrust with evidence across the ecosystem, because a trustworthy machine inside an unfair process is not a trustworthy election.

Why this earns marks: It integrates all major subtopics, uses three case families and critically rejects both complacency and unsupported suspicion.

Final consolidated register notes

Constitutional field and ownership

ARTICLE 324

Parliament + State legislatures + President + Vice-President

ARTICLES 243K / 243ZA

Panchayats + Municipalities -> State Election Commission

- [FACT] ECI is a permanent independent constitutional body established on 25 January 1950.
- [FACT] Article 324 verbs: superintendence, direction and control.
- [LIMIT] It does not conduct local-body elections.
- [FACT] Article 325: one general roll; no exclusion/special-roll claim solely on religion, race, caste or sex.
- [FACT] Article 326: adult suffrage; age reduced to 18 by the 61st Amendment.
- [FACT] Articles 327/328 allocate election-law competence; Article 329 protects the process and routes challenges to petitions.

Composition and evolution

Recall	Rule
1950-Oct 1989	single-member CEC
Oct 1989-Jan 1990	CEC + 2 ECs
Jan 1990-Oct 1993	single-member
Oct 1993 onward	three-member collegial Commission
constitutional number	not fixed
current number	CEC + 2 ECs

- [CURRENT] Control-date leadership: Gyanesh Kumar; Dr Sukhbir Singh Sandhu; Dr Vivek Joshi.
- [FACT] CEC is Chair when other ECs exist.
- [FACT] Equal decisional power; unanimity as far as possible; majority if difference.
- [FACT] *T.N. Seshan*: multi-member equality upheld.

Appointment Act rapid recall

s.5 eligibility

Secretary-equivalent + integrity + election management/conduct experience

s.6 Search

Law Minister + 2 Secretary-rank-or-above -> panel of 5

ss.7-8 Selection

PM + LoP/largest opposition leader + PM-nominated Cabinet Minister
transparent procedure; may go outside panel

s.4 President appoints by warrant

- [FACT] Official title: The Chief Election Commissioner and other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023.
- [FACT] Act 49 of 2023; in force 2 January 2024.
- [FACT] Vacancy/defect in Selection Committee does not merely by itself invalidate appointment.
- [LIMIT] Search Committee head is not Cabinet Secretary in the enacted text.
- [LIMIT] Salary comparator is SC judge, not Cabinet Secretary.

Anoop Baranwal and current status

legislative vacuum

-> Anoop Baranwal interim panel:

PM + LoP/largest opposition leader + CJI

-> "till a law is made by Parliament"

-> 2023 Act displaces interim panel

- [FACT] Do not say old appointments were simply declared unconstitutional.
- [FACT] Official 22 March 2024 order dismissed stay applications and refused interim judicial rewriting.
- [FACT] That order called for full candidate details and fair deliberation.
- [CURRENT] No located official merits verdict or stay as of 19 August 2026.
- [LIMIT] Repository/live discovery reports 30 July 2026 reservation on larger-Bench reference; do not convert it into a merits result.

Tenure, salary, protection and removal

Issue	Control
term	6 years or 65, earlier
reappointment	barred
EC promoted CEC	aggregate service max 6 years
salary	equal to SC judge
CEC removal	like SC judge
EC removal	only on CEC recommendation
Regional Commissioner removal	only on CEC recommendation
s.16	civil/criminal proceeding protection for official/purported-official act, thing or word

- [LIMIT] Six years/65 is statutory, not constitutional text.
- [LIMIT] Equal votes do not mean equal removal protection.
- [LIMIT] Section 16 is not private-conduct immunity or abolition of review of ECI orders.

Election administration chain

ECI

- > Chief Electoral Officer
 - > District Election Officer
 - > Returning Officer / Electoral Registration Officer
 - > Presiding and polling personnel
- [FACT] Article 324(6): President/Governor makes staff available when requested.
 - [FACT] ECI announces schedule; statutory notifications activate the formal legal process.
 - [FACT] Observers: general, police, expenditure and micro-observer functions.
 - [FACT] SVEEP supports information, registration, accessibility and ethical participation.
 - [LIMIT] Observer is not Returning Officer or election court.

Electoral-roll control

Principle	Recall
equality	Article 325 general roll
eligibility	citizenship + 18 + ordinary residence
qualifying dates	1 Jan, 1 Apr, 1 Jul, 1 Oct
forms	6 inclusion; 7 objection/deletion; 8 correction/shifting
process	verification -> notice/hearing -> reason -> appeal

- [ANALYSIS] Integrity = eligible inclusion + accurate lawful correction.
- [LIMIT] A database flag is not a deletion order.
- [LIMIT] Recheck every State-specific special revision and pending case.

Delimitation boundary

Parliamentary law

- > Delimitation Commission
 - Judge Chair + CEC/EC nominee + State EC
 - > public process and final order
 - > ECI implementation
- [FACT] Four Delimitation Commissions till December 2023: 1952, 1962, 1972, 2002 frameworks.
 - [FACT] Final statutory orders have force of law.
 - [LIMIT] ECI assists/participates; it does not ordinarily delimit alone.

Parties and symbols

Stage	Legal route
registration	RPA 1951 s.29A
recognition	Symbols Order performance criteria
reserved/free symbols	Symbols Order
split dispute	ECI quasi-judicial decision

- [FACT] *Kanhiya Lal Omar* upheld Symbols Order authority.
- [LIMIT] Registration != recognition.
- [LIMIT] Symbol jurisdiction != every internal party dispute.

Model Code of Conduct

1960 Kerala experiment

- > early national circulation
- > 1968-69 broader consensus
- > successive ECI additions
- > current code

- [FACT] Non-statutory and consensus-based.
- [FACT] Operates from schedule announcement to completion.
- [FACT] Covers general conduct, meetings, processions, polling, observers, party in power and manifestos.
- [FACT] RPA/BNS offences may overlap.
- [ANALYSIS] Strength: rapid prevention. Weakness: limited direct penalty, consistency and opacity.
- [LIMIT] Non-statutory != no consequence; MCC censure != criminal conviction.
- [ANALYSIS] Reform: complaint ledger + timelines + speaking orders + statutory referrals.

EVM-VVPAT

Ballot Unit -> Control Unit record

-> VVPAT visible paper trail -> sealed box

- [FACT] *Subramanian Swamy* (2013): phased VVPAT.
- [FACT] *ADR v. ECI* (26 Apr 2024): no paper-ballot return; no universal 100% VVPAT count.
- [FACT] SLUs sealed and kept at least 45 days post-result.
- [FACT] second/third candidates may request within seven days a 5% EVM-set burnt-memory check per Assembly constituency/segment.
- [FACT] 7 May 2025 follow-up: ECIL/BEL engineers conduct diagnostic checks and certify integrity; a candidate may request a mock poll after display of recorded data and may seek retention of SLU data for it.
- [LIMIT] Safeguard != finding of tampering.
- [ANALYSIS] Trust = technical security + custody + observation + audit + transparent incident response.

Article 324 case-law code

Case	One-line rule
<i>Mohinder Singh Gill</i>	reservoir power in statutory silence
<i>A.C. Jose</i>	supplement, never supplant, Act/Rules
<i>T.N. Seshan</i>	collegial equality and majority
<i>Kanhiya Lal Omar</i>	Symbols Order authority
<i>ADR/PUCL</i>	voter information disclosure
<i>PUCL 2013</i>	secret NOTA
<i>Subramanian Swamy</i>	VVPAT
<i>Anoop Baranwal</i>	interim appointment committee till law
<i>ADR v. ECI 2024</i>	EVM-VVPAT retained with safeguards
electoral-bonds judgment	political-funding non-disclosure violated Article 19(1)(a)

Plenary-power formula

LAW SPEAKS -> ECI follows

LAW SILENT -> Article 324 may fill gap

EVERY CASE -> free/fair purpose + reasons + fairness + review

- [LIMIT] Article 324 cannot invent disqualification, criminal offence or contrary voting method.
- [FACT] Urgency can shape natural justice, not erase legality.

Disqualification and dispute routes

Issue	Forum
Article 102/191 sitting-member question	President/Governor acting according to ECI opinion
Tenth Schedule	Speaker/Chairman
returned-candidate validity	High Court election petition
RPA appeal	Supreme Court
President/VP election dispute	Supreme Court under Article 71

- [FACT] Article 329 protects an uninterrupted election and post-poll petition remedy.
- [LIMIT] ECI is administrator/adviser, not the final election court.

Independence and accountability

appointment x removal x finance x secretariat
x collegiality x transparent enforcement
= practical independence

- [FACT] CEC tenure protection is strong; other EC protection is asymmetric.
- [FACT] Union Budget 2026-27 presents ECI under Demand No. 66.
- [FACT] *Anoop Baranwal* appealed for permanent secretariat and charged expenditure.
- [LIMIT] The appeal was not a self-executing declaration that all ECI expenditure is charged.
- [ANALYSIS] Best reforms: plural appointment, independent search, reasons, equalised but accountable removal, stable secretariat, separate/charged finance with audit, complaint transparency and fast judicial remedies.

Last-minute trap list

1. ECI does not conduct panchayat/municipal elections.
2. Constitution does not fix three members.
3. CEC has no superior deciding vote.
4. Only CEC has SC-judge removal route.
5. Six years/65 is statutory.
6. Search Committee is Law-Minister-led.
7. Selection may go outside the five-name panel.
8. Salary equals SC judge.
9. MCC is non-statutory.
10. Article 324 supplements, not supplants, law.
11. ECI participates in delimitation; it is not ordinary sole authority.
12. Registration is not recognition.
13. NOTA does not automatically trigger repoll.
14. Election petitions go to High Court.
15. No final-validity claim about the 2023 Act is safe on this control date.

Rapid Mains spines

Demand	Spine
ECI independence	Article 324 -> safeguards -> appointment Act -> finance/staff -> transparency -> reform
appointment law	<i>Anoop</i> interim -> ss.5-8 -> strengths -> 2:1 concern -> current status -> reasons/plurality
plenary power	<i>Mohinder</i> -> gap -> <i>A.C. Jose</i> -> limit -> fairness
MCC	evolution -> non-statutory status -> enforcement -> legal overlap -> opacity -> hybrid reform
EVM trust	VVPAT -> 2024 safeguards -> ecosystem risks -> evidence-led transparency
rolls	Article 325/RPA -> inclusion -> correction -> due process -> audit
symbols	s.29A -> recognition -> Symbols Order -> <i>Kanhiya</i> -> bounded jurisdiction
disputes	Article 329 -> petition -> void grounds -> appeal -> delay reform

Final twenty-second recall

324 = ECI field
 243K/243ZA = local bodies
 CEC chair, equal votes, stronger removal
 Anoop = interim till law
 2023 Act = Law Minister search; PM-LoP-Minister selection
 6 years/65; no reappointment; SC-judge salary
 MCC = fast, consensus, non-statutory
 Mohinder = reservoir
 A.C. Jose = no statutory override
 Rolls = inclusion + integrity + due process
 Symbols = registration != recognition
 EVM trust = VVPAT + custody + audit
 Disputes = High Court petition
 Current = Act operative; no located stay/merits verdict